

Dina Nath Saw v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 9 May 2023 · 2023:AHC:99891-DB · WRIT - C No. - 32952 of 2011 ·
Writ dismissed for want of prosecution.

HEADNOTE

Challenging a 9 May 2011 citation for deposit of a theft-of-electricity assessment, the petitioner alleged that no provisional assessment was served and the Electricity Act, 2003 and U.P. Electricity Supply Code, 2005 were not followed. The 2011 Division Bench issued notice and stayed recovery till the next date on a without-prejudice deposit of Rs. 71,000 after the licensee could not state the mode of sending the assessments. In 2023 none appeared to press even in revised call; the writ was dismissed for want of prosecution.

FACTUAL SUMMARY

Dina Nath Saw was prosecuted for alleged theft of electricity and granted bail. He claimed that no provisional assessment was served and he had no chance to object, yet a Citation dated 9 May 2011 demanded deposit of the theft assessment without complying with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. The licensee said both assessments were sent and the Code was followed, but could not state the mode of service.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution; theft-assessment citation

HOLDING

The 2011 Division Bench issued notice and stayed recovery under the 9 May 2011 citation till the next date, conditional on deposit of Rs. 71,000 with the licensee within four weeks, without prejudice, the stay to stand automatically vacated on default. On 9 May 2023 none appearing to press even in revised call, the writ was dismissed for want of prosecution.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PROVISIONAL AND FINAL ASSESSMENTS WERE SERVED AND WHETHER THE ELECTRICITY ACT, 2003 AND U.P. ELECTRICITY SUPPLY CODE, 2005 WERE COMPLIED WITH BEFORE THE 9 MAY 2011 CITATION, AND THE MERITS OF THE THEFT ASSESSMENT

2011 Bench found the matter required consideration after counsel could not state the mode of sending the assessments; 2023 dismissal decided nothing on those issues ¶ 1